

At Individual Assignment Part 55 of the Supreme Court of the State of New York, held in and for the County of New York, City and State of New York, at the courthouse located at 71 Thomas Street, New York, New York, on the _____ day of June, 2025.

PRESENT: HONORABLE JUSTICE d'Auguste

THE CITY OF NEW YORK,

Plaintiff,

-against-

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

ORDER

INDEX NUMBER 450551/2025

Plaintiff, having brought a special proceeding pursuant to New York City Administrative Code Chapter 7 against defendants, and a motion for a preliminary injunction pursuant to New York City Administrative Code §7-707(a), having been made to this court upon the affirmation of Evan Gluck, Esq., dated January 28, 2025, for an Order granting plaintiff a preliminary injunction, temporary restraining orders and a temporary closing order against the defendants in this action and

due notice of motion having been given, and the matter having duly come on to be heard before Hon. James d'Auguste, one of the Justices of this Court, at IAS part 55 thereof, held at 71 Thomas Street, New York, New York, and upon the reading and filing of the Affirmation of Sergeant Jason Castillo, dated December 20, 2024; and the Affirmation of Lieutenant John Core, dated December 19, 2024; together with the exhibits; and the Summons and Verified Complaint, verified by Marquis R. Bradshaw, Esq., on January 24, 2025, with proof of service,

NOW it is hereby:

(1) ORDERED, ADJUDGED AND DECREED that this ORDER replaces this Court's ORDER from February 11, 2025;

(2) ORDERED, ADJUDGED AND DECREED that the matter is adjourned to ____:____.m. on _____, 2025;

(3) ORDERED, ADJUDGED AND DECREED that the temporary injunction against the use of the subject premises for the unlicensed sale and on-premises consumption of alcoholic beverages or other unlawful activity described in Section 123 of the New York State Alcoholic Beverage Control Law, which was ordered by this court on January 29, 2025, shall remain in place pending the next appearance on _____, 2025:

(4) ORDERED, ADJUDGED AND DECREED that at least until the adjournment date on _____, 2025; Maureen Lupo, as member of Baby.Real.Right.Tho LLC appearing herein as JANE DOE, the current occupant of the subject premises, her agents, employees, and/or representatives, and any and all persons acting individually or in concert with them are only permitted to allow the subject premises to be open and operating during any hours if a security guard company is utilized to ensure compliance with the temporary injunction ordered by this court on January 29, 2025 as follows:

a) the security guard to patron ratio should remain one (1) security guard for every one hundred (100) patrons. Discretion should be used by management to employ additional security guards based on the event or crowd to ensure safety and lawfulness;

b) as per New York State law, the security guard company must be licensed by the NYS Department of State and all security guards utilized must be licensed by the NYS Department of State; and

c) the information for the security guard company to be utilized at the subject premises must be provided to the 10th Precinct of the NYPD within seven (7) days of this ORDER being signed;

(5) ORDERED, ADJUDGED AND DECREED the subject premises shall be subject to unannounced warrantless inspections by the New York City Police Department for the purpose of ensuring compliance with this ORDER. This parameter in no way limits the New York City Police Department, or any other agency, in any other investigation or operation which they may conduct inside the subject premises;

(6) ORDERED, ADJUDGED AND DECREED that in the event there is a violation of any provision of this Order, plaintiff may file documentation regarding such violation with this Court. Upon a judicial determination that a violation has occurred, the premises will be immediately closed. Once the landlord and/or net-lessee have regained legal possession, then the subject premises may re-open. Furthermore Maureen Lupo, Baby.Real.Right.Tho LLC, BABY'S WEST 42 LL, JOHN DOE and/or JANE DOE and any individuals associated with the operation of the subject premises will immediately and permanently vacate the subject premises and surrender whatever leasehold and/or possessory interest(s) it holds in the subject premises to the landlord and/or net-lessee.

(7) ORDERED, ADJUDGED AND DECREED that service of a copy of this Order be made

upon defendants personally pursuant to CPLR Section 308(1); or by leaving a copy thereof with a person of suitable age and discretion at the subject premises pursuant to CPLR Section 308(2) on or before the ___ of _____, 2025; and that this be deemed good and sufficient service on defendants, provided however, that if service is not made personally or to a person of suitable age and discretion, a copy of the papers will be posted at the subject premises and subsequently mailed to each defendant at his or her last known address by the overnight mail on or before the ___ day of _____, 2025;. Any defendants represented by an attorney can also be served by the Order being delivered to said attorneys by electronic means on or before the ___ day of _____, 2025.

E N T E R

J.S.C.